

James Mackintosh in Bombay:

Colonial Rule of the Scottish Enlightenment

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2025-03-12

Abstract

Neither his contemporaries nor today's scholarship has paid enough attention to James Mackintosh in Bombay. Mackintosh, a leading figure in the Scottish Enlightenment, was the author of *A Discourse on the Study of the Law of Nature and Nations*, a book that is forgotten today but that attracted the attention of his contemporaries. He was an exceptional political theorist who stayed in the Indian subcontinent. This study organizes his discussion of state, relations between states, and narrative on civilization and barbarism from the discourse, and discusses how these ideas and narrative were or were not utilized by Mackintosh in Bombay. The essay concludes as follows: He used the idea of state in the rule of law and civil society in Bombay. On the other hand, his theory on the law of nations does not have sufficient concepts and language to discuss empire, such as referring to the protectorate of Great Britain as if it were an independent state. This study argues that he, who had the aporia of legitimacy of acquisition and legitimacy of administration, seems to have wandered into a further aporia, by neglecting to discuss the natives in the subcontinent. The author implies that the colonial application of his Enlightenment thought—especially his conception of political economy—was his own answer to getting out of the aporia.